

HOUSE No. 1853

The Commonwealth of Massachusetts

PRESENTED BY:

Jay D. Livingstone

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to enhance the availability of immunity to witnesses in the courts of the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>1/15/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>11/19/2025</i>

HOUSE No. 1853

By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 1853) of Jay D. Livingstone relative to testimony after grant of immunity to witnesses. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to enhance the availability of immunity to witnesses in the courts of the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 20D of chapter 233 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking the existing section and replacing it with the
3 following paragraph:

4 A witness who is called or who may be called to testify before a grand jury or in a
5 criminal proceeding in the supreme judicial court, appeals court, superior court, district court, or
6 in a proceeding in the juvenile court, may, in the manner provided in section twenty E, be
7 granted immunity in any proceeding or investigation involving a criminal offense.

8 SECTION 2. Section 20E(a) of chapter 233 of the General Laws, as appearing in the
9 2015 Official Edition, is hereby amended by striking the words “or Superior Court” and
10 replacing them with the words “Superior Court, District Court or Juvenile Court.”

11 SECTION 3. Section 20E(c) of chapter 233 of the General Laws, as appearing in the
12 2015 Official Edition, is hereby amended by striking the words “or Superior Court” and

- 13 replacing them with the words “Superior Court, District Court or Juvenile Court,” and by striking
- 14 the words “in the superior court” at the conclusion of the subsection.